

Matloob v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 January 2015 · Criminal Misc. Writ Petition No. 2253 of 2015 · **FIR quash refused; CrPC 41/41-A on arrest; compounding left open**

HEADNOTE

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence cannot be quashed. Arrest, if contemplated in an offence not punishable with more than seven years, must comply with CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and s.152 of the Act.

FACTUAL SUMMARY

Matloob filed a criminal miscellaneous writ in the Allahabad High Court seeking to quash an FIR dated 16 January 2015, Case Crime No. 16 of 2015 under Section 135 of the Electricity Act, 2003, registered at Police Station Thana Bhawan, District Shamli. He had not been arrested. He argued that the alleged offence could not attract a sentence of more than seven years, so police should not arrest him mechanically, and that the offence was also compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of theft FIR

HOLDING

An FIR under s.135 that discloses a cognizable offence is not quashed. A mere apprehension of arrest in breach of CrPC ss.41(1)(b) and 41-A does not justify quashing; if arrest is to be made and the offence cannot attract a sentence exceeding seven years, police must comply with those provisions. ¶ 1

INTERPLAY · EA2003::152

compounding of electricity offence

HOLDING

If the alleged s.135 offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and s.152 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence cannot be quashed. Arrest, if contemplated in an offence not punishable with more than seven years, must comply with CrPC ss.41(1)(b) and 41-A.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

Court said the petitioner may seek compounding if the offence is compoundable, without deciding eligibility. ¶ 1